

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael King T4	Team: Team # 4	CCRB Case #: 200705171	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 04/15/2007 8:20 PM	Location of Incident: § 87(2)(b) apartment § 87(2)(b) in Queens and the 115th Precinct stationhouse	18 Mo. SOL 10/15/2008	Precinct: 115
Date/Time CV Reported Mon, 04/16/2007 10:45 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/16/2007 10:45 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Anne Jackson	07682	941943	115 PCT
2. An officer			115 PCT
3. POM Billy Choi	12270	941551	115 PCT
4. POM Daniel Lee	07811	935170	115 PCT
5. POM Vincent Calderone	00328	936038	115 PCT
6. POM Omar Hafiz	26318	933565	115 PCT
7. POM Avidan Santiago	03685	933325	115 PCT
8. POM Jeffrey Fitterman	23833	934868	115 PCT
9. POM Alexande Wancel	20090	935951	115 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Francis Mckenna	01978	927184	115 PCT
2. POF Tamara Pippinsgreaves	10327	942365	115 PCT
3. SGT Jerry Fulmore	03690	903130	115 PCT
4. POM Sergot Duplessy	01801	941690	115 PCT
5. SGT Christophe Canavan	00931	903550	115 PCT
6. POM Patrick Barrett	30595	903405	115 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Billy Choi	Discourtesy: PO Billy Choi spoke obscenely and rudely to § 87(2)(b) and § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	A . Unsubstantiated
B . POM Billy Choi	Abuse: PO Billy Choi threatened § 87(2)(b) with the use of force in the vicinity of § 87(2)(b) in Queens.	B . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
C . POM Billy Choi	Force: PO Billy Choi used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	C . Exonerated
D . POF Anne Jackson	Force: PO Anne Jackson used physical force against § 87(2)(b) and § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	D . Exonerated
E . An officer	Force: An officer pointed his gun at § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	E . Officer(s) Unidentified
F . An officer	Force: An officer struck § 87(2)(b) with a nightstick in the vicinity of § 87(2)(b) in Queens.	F . Officer(s) Unidentified
G . POM Avidan Santiago	Force: PO Avidan Santiago struck § 87(2)(b) with an asp in the vicinity of § 87(2)(b) in Queens.	G . Unsubstantiated
H . POM Avidan Santiago	Force: PO Avidan Santiago used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	H . Unsubstantiated
I . POM Omar Hafiz	Force: PO Omar Hafiz used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	I . Unsubstantiated
J . POM Vincent Calderone	Force: PO Vincent Calderone used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	J . Unsubstantiated
K . POM Daniel Lee	Force: PO Daniel Lee used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	K . Unsubstantiated
L . POM Jeffrey Fitterman	Force: PO Jeffrey Fitterman used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	L . Unsubstantiated
M . POM Alexandre Wancel	Force: PO Alexander Wancel used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	M . Unsubstantiated
N . An officer	Force: An officer used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	N . Officer(s) Unidentified
O . An officer	Abuse: An officer searched § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.	O . Officer(s) Unidentified
P . POM Billy Choi	Discourtesy: PO Billy Choi spoke obscenely and rudely to § 87(2)(b) at the 115th Pct stationhouse.	P . Unsubstantiated
Q . An officer	Abuse: An officer did not process § 87(2)(b) s complaint regarding officers at the 115th Precinct stationhouse.	Q . Officer(s) Unidentified

Synopsis

At approximately 8:20 PM on April 15, 2007, § 87(2)(b) contacted 911 to report a domestic dispute with her father, § 87(2)(b) at their apartment located at § 87(2)(b) in Queens. § 87(2)(b) reported to the 911 operator that her father had choked her. PO Billy Choi and PO Anne Jackson of the 115th Precinct were the first officers to respond. Upon arrival, PO Jackson spoke with § 87(2)(b) after which PO Jackson notified PO Choi to arrest § 87(2)(b) for assault. PO Choi handcuffed § 87(2)(b) without incident. § 87(2)(b) alleged that PO Choi spoke obscenely and rudely to him (allegation A). After § 87(2)(b) was handcuffed, family members contacted § 87(2)(b)'s brother, § 87(2)(b) who came to the apartment to find out what was occurring. § 87(2)(b) alleged that PO Choi spoke obscenely to him (allegation A) and threatened to use physical force against him (allegation B). PO Choi refused to allow § 87(2)(b) to enter the apartment. § 87(2)(b) became upset at this and a struggle ensued between PO Choi and § 87(2)(b) with PO Choi using physical force against § 87(2)(b) (allegation C) in an effort to maintain control; the struggle occurred outside the apartment in the hallway. Other family members – § 87(2)(b) and § 87(2)(b) – approached to see what was occurring between PO Choi and § 87(2)(b). PO Jackson used physical force against § 87(2)(b) and § 87(2)(b) (allegation D) by holding them back to prevent them from interfering with the arrest. At this point, the officers requested back-up via their department-issued radios and several 115th Precinct officers responded: PO Avidan Santiago, PO Omar Hafiz, PO Vincent Calderone, PO Daniel Lee, PO Jeffrey Fitterman, PO Alexander Wancel, and Sgt. Francis McKenna as well as other unidentified officers. § 87(2)(b) alleged that an unidentified officer entered the apartment with his gun drawn and pointed at § 87(2)(b) (allegation E). § 87(2)(b) and § 87(2)(b) also alleged that an unidentified officer entered the hallway and struck § 87(2)(b) on the head with a nightstick or asp (allegation F). PO Santiago claimed that he pushed § 87(2)(b) across the chest with an asp (allegation G). § 87(2)(b) and § 87(2)(b) alleged that numerous officers used physical force against § 87(2)(b) by repeatedly punching and kicking him (allegations H, I, J, K, L, and M). § 87(2)(b) sustained lacerations to the top of his head and right leg below the knee; the laceration to his head required sutures and he received medical treatment at § 87(2)(b) Hospital. § 87(2)(b) also alleged that an unidentified officer pushed him against the wall (allegation N) and then searched him (allegation O). After the arrests were made, § 87(2)(b) went to the 115th Precinct stationhouse. She alleged that PO Choi spoke obscenely and rudely to her inside the 115th Precinct stationhouse (allegation P) and that an unidentified officer refused to process her CCRB complaint (allegation Q).

Sgt. Michael Mensch of the NYPD IAB conducted an investigation into this incident and unsubstantiated the case.

§ 87(2)(b), § 87(2)(g)

Former Inv. Jon Liroff conducted the investigation of this complaint prior to resigning from the CCRB in March of 2008. Inv. Lara Freishtat conducted the final photographic array in April of 2008. Inv. Michael King drafted the closing report.

Summary of Complaint

§ 87(2)(b) (enclosure 3-1 to 3-4)

§ 87(2)(b) filed this complaint on behalf of his brother, § 87(2)(b) by calling the CCRB via telephone on April 16, 2007. § 87(2)(b) did not witness the incident. As a result, the CCRB did not obtain a formal statement from him.

§ 87(2)(b) (enclosure 6-1 to 6-78)

§ 87(2)(b) a § 87(2)(b) provided statements to Emergency Medical Technicians (EMTs) and medical personnel at § 87(2)(b) Hospital on April 15, 2007. He was interviewed by the CCRB on April 24, 2007. He was shown photographic arrays on May 30, 2007, June 30, 2007, March 6, 2008, and April 22, 2008. His statement is summarized as follows.

At approximately 8:00 PM on April 15, 2007, § 87(2)(b) was in his home at § 87(2)(b) in Queens when he got into an argument with his daughter, § 87(2)(b) and slapped her in the face. At that time, § 87(2)(b)'s wife, § 87(2)(b)'s parents, § 87(2)(b) and § 87(2)(b) and § 87(2)(b)'s § 87(2)(b) old son, § 87(2)(b) were also in the apartment. § 87(2)(b) called 911 to report the incident and PO Anne Jackson (identified by the investigation based on § 87(2)(b)'s description – white female officer – and the officer statements) and PO Billy Choi (identified by the investigation based on § 87(2)(b)'s description – Asian male officer – and the officer statements) responded to the apartment. PO Jackson spoke with § 87(2)(b) toward the back of the apartment while PO Choi dealt with § 87(2)(b) in the front near the door. Because § 87(2)(b) does not speak English and PO Choi did not speak Spanish, § 87(2)(b) used his cell phone to call his brother, § 87(2)(b) to come to the apartment and act as a translator. This upset PO Choi, who took the phone away from § 87(2)(b). PO Choi placed § 87(2)(b) against the wall and used his foot to spread § 87(2)(b)'s legs. PO Choi told § 87(2)(b) to put his hands up against the wall, which he did. PO Choi handcuffed § 87(2)(b) who did not resist the handcuffing.

At that point, § 87(2)(b) arrived at the apartment and remained calm. PO Choi would not let § 87(2)(b) enter the apartment and § 87(2)(b) asked why but the officer still would not let him enter. The door stood open at this point and § 87(2)(b) was in the hall outside the apartment. PO Choi repeatedly told § 87(2)(b) “Fuck you,” when § 87(2)(b) asked why his brother could not come into the apartment. PO Choi then threw § 87(2)(b) to the floor, chest down, and punched him approximately 7 times in the left side of the face with a closed fist.

PO Choi then called for back up and 15 police officers responded and entered the apartment with their guns drawn. The officers shut the door behind them and surrounded § 87(2)(b). An unidentified officer (described by § 87(2)(b) to be a uniformed 5’4” dark-skinned male) entered the apartment with his gun drawn and pointed directly at § 87(2)(b)'s head. Another unidentified officer (described by § 87(2)(b) to be a “very large” uniformed white male) immediately approached § 87(2)(b) and struck him in the top of the head and in the back with a nightstick. PO Choi then pulled up on the cuffs such that § 87(2)(b) was kneeling and the officer who hit him with a nightstick also knelt § 87(2)(b) several times in the stomach. Numerous other officers struck § 87(2)(b) as well, but he did not recall what the officers looked like. § 87(2)(b) began to bleed heavily from his head from where he was struck with the nightstick. The officers opened the door and dragged him out into the hall, putting him up against the door of a neighbor until EMS responded and wrapped his entire head in gauze. § 87(2)(b) stated to the EMTs who first treated him that he “didn’t know they were police officers.” EMS then removed § 87(2)(b) to the hospital and later to the stationhouse. § 87(2)(b) informed the EMTs that he got into a fight with police officers. He complained of head pain and right leg pain to medical personnel at § 87(2)(b) Hospital. § 87(2)(b)'s arrest photo did not indicate the injury to § 87(2)(b)'s head or any other injuries.

§ 87(2)(b) identified PO Choi in the photographic array. He did not identify any other officers in the photographic arrays, which consisted of the following officers assigned to duty at the time of the incident from the 115th Precinct, the 110th Precinct, the 112th Precinct, and Patrol Borough Queens North Task Force: PO Choi, PO Namjou Kim, PO Christopher Troisi, PO Robert Dibona, PO Sean McGovern, PO Patrick Barrett, PO Kurt Jones, Sgt. Francis McKenna, PO Benjamin Panas, PO Avidan Santiago, PO Jonathan Rosario, PO Aneudy Castillo, PO Louis Meade, PO Omar Hafiz, PO Michael Jurgens, PO Gregory Hamilton, PO Nicholas Mencaroni, PO Michael Oberg, PO Bryan Shannon, PO Evangelos Dimitrakakis, PO Alexander Wancel, PO Dominick Giarmoleo, PO Jeffrey Fitterman, Sgt. Lawrence Fiorello, PO Vincent Calderone, Sgt. Alberto Randazzo, PO Carlo Cifarelli, PO Kenneth Harsch, PO Jonathan Sguigna, PO Geoffrey Wyrick, PO Rafael Laskowski, PO John Wingate, PO Emile Pratt, PO Michael Murphy, PO Sean Lutin, PO Victor Flores, PO Steven Lackos, PO Anthony Lobasso, PO Jerry Klepadlo, PO Jason Lamitola, PO Howard Johnson, PO Thomas Kelly, PO Eric Hatkewitz, PO Mark Stevens, PO Robert Echeverria, PO Guiseppe Lisio, and Captain Christopher Tamola.

§ 87(2)(b) **(enclosure 7-1 to 7-40)**

§ 87(2)(b) a 5’11” § 87(2)(b) old Hispanic male with black hair, was interviewed by the CCRB on April 24, 2007. He was shown photographic arrays on June 30, 2007. The interviews were conducted in Spanish and are summarized as follows.

According to § 87(2)(b) his brother, § 87(2)(b) called him on April 15, 2007, and told him that officers were in § 87(2)(b)'s apartment; § 87(2)(b) wanted § 87(2)(b) to come over and serve as an

interpreter, § 87(2)(b) walked across the street to § 87(2)(b)'s apartment and once there, observed PO Choi (identified by the investigation based on § 87(2)(b)'s description, § 87(2)(b)'s statement, and the officer statements) standing with § 87(2)(b) who was in handcuffs at that time and standing chest-first against the wall. § 87(2)(b) tried to enter the apartment, but PO Choi refused him entry. § 87(2)(b) did not appear to be injured at this time, nor did he appear to be bleeding. § 87(2)(b) asked why he was not allowed to enter and PO Choi called him a "motherfucker" and also stated that he was going to "hurt § 87(2)(b)". § 87(2)(b) asked PO Choi why his brother was not allowed to enter, at which time PO Choi pushed § 87(2)(b) 2-3 times and called him a "motherfucker." PO Choi then pushed § 87(2)(b) to the ground and began striking him. § 87(2)(b) could not see what PO Choi was hitting § 87(2)(b) with or where.

Approximately 5-12 uniformed officers entered the apartment, some of them with their guns drawn. The officers surrounded § 87(2)(b) and began striking him. § 87(2)(b) indicated that the officers closed the door and he could hear § 87(2)(b) screaming. § 87(2)(b) did not indicate if he actually saw the officers striking § 87(2)(b). Two additional officers stopped § 87(2)(b) and an unidentified Asian male officer placed § 87(2)(b) against a wall, searched him, and then handcuffed him. § 87(2)(b) then observed officers escorting § 87(2)(b) out of the apartment, at which time § 87(2)(b) was bleeding substantially from his head. § 87(2)(b) was transported to the stationhouse and then to Queens Criminal Court, where he was arraigned.

§ 87(2)(b) did not identify any officers in the photographic arrays.

§ 87(2)(b) **(enclosure 9-1 to 9-51)**

§ 87(2)(b) a § 87(2)(b) Hispanic female with black hair, provided a statement to the 911 operator on April 15, 2007 at the start of the incident. She was interviewed by the CCRB on April 30, 2007. She was shown photographic arrays on May 30, 2007, June 30, 2007, and April 22, 2008. She added the following details.

According to § 87(2)(b) she and her father § 87(2)(b) got into a heated argument during which § 87(2)(b) threatened to call 911 if § 87(2)(b) hit her. § 87(2)(b) called 911, but did not indicate whether § 87(2)(b) did hit her. She quickly hung up before speaking to an operator. According to the 911 SPRINT recording, § 87(2)(b) informed the 911 operator that her father was "beating [her] up" and also provided her address. § 87(2)(b) stopped speaking into the phone and 911 then called § 87(2)(b) back and asked her if she needed assistance. § 87(2)(b) did not indicate to the CCRB what she told 911, but admitted that she provided her address and informed the operator that her father was still in the house. The 911 recording indicated that she informed the 911 operator that her father was "choking [her]," took the phone away from her, threw it away, and then choked her again. Officers responded and PO Jackson spoke with § 87(2)(b) asking her what happened. § 87(2)(b) did not indicate to the CCRB what she told PO Jackson and eventually claimed that she did not tell the officer anything. PO Jackson and § 87(2)(b) went to the dining room area. PO Jackson motioned to her partner, PO Choi, to handcuff § 87(2)(b) (PO Jackson crossed her wrists as if to indicate that they were handcuffed.)

Contrary to the other civilian statements, § 87(2)(b) claimed that PO Choi told § 87(2)(b) to raise his hands and spread his legs, which § 87(2)(b) did. § 87(2)(b) did not indicate that PO Choi pushed § 87(2)(b) against a wall or kicked his legs apart. PO Choi searched § 87(2)(b)'s pockets and then placed § 87(2)(b) in handcuffs without struggle. § 87(2)(b) began asking in Spanish why § 87(2)(b) was being arrested and § 87(2)(b) asked § 87(2)(b) to call § 87(2)(b) to have him come over to act as an interpreter.

When § 87(2)(b) arrived at the apartment, PO Choi asked him, "Who the fuck are you?" § 87(2)(b) answered in English that § 87(2)(b) was his brother. After PO Choi refused to allow § 87(2)(b) to enter the apartment, § 87(2)(b) complained in Spanish that § 87(2)(b) should be allowed into the apartment. PO Choi then told § 87(2)(b) "Stay the fuck outside," pushed § 87(2)(b) face-first against a closet and told § 87(2)(b) "Shut the fuck up, motherfucker." § 87(2)(b) pleaded with her father to remain still and not say or do anything. PO Choi grabbed § 87(2)(b) threw him to the floor, and began punching § 87(2)(b) on the cheek/side of his face. § 87(2)(b) did not observe PO Choi striking § 87(2)(b) with a nightstick. PO Jackson kept § 87(2)(b) and § 87(2)(b) in the living room and PO Choi called for backup, stating that § 87(2)(b) was resisting arrest.

Additional officers responded and began hitting § 87(2)(b). She did not witness the officers hitting § 87(2)(b) but stated she heard the officers hitting him. An unidentified officer asked for a towel and § 87(2)(b) answered that there were napkins in the kitchen. PO Jackson asked § 87(2)(b) for her name, address, and phone number. § 87(2)(b) then walked out to the hallway and observed blood on the floor of the

apartment and in the building hallway. § 87(2)(b) was on his knees, facing down, and bleeding onto the floor. Officers or paramedics were trying to wrap his head in gauze.

§ 87(2)(b) went to her cousin's home, where she received a phone call later from PO Jackson. PO Jackson asked § 87(2)(b) to come to the stationhouse. § 87(2)(b) complained that § 87(2)(b) had been arrested and PO Jackson explained that he was arrested for interfering with the officers. At approximately 12:00 AM, § 87(2)(b) went to the stationhouse with her cousins, § 87(2)(b) old § 87(2)(b) Jr. and § 87(2)(b). She also claimed a friend of § 87(2)(b) named "§ 87(2)(b)" also went to the stationhouse. At the stationhouse, PO Jackson asked § 87(2)(b) to provide a statement about what her father did and also asked to take pictures of § 87(2)(b). § 87(2)(b) refused to make a statement against her father, instead claiming that she would give a statement regarding the officers who hit her father. PO Jackson left and § 87(2)(b) asked other officers for PO Choi's name. PO Choi then came out to where § 87(2)(b) was and she asked him for his name. PO Choi initially refused to provide his identification, but eventually turned to face § 87(2)(b) who was able to read his nametag.

After approximately a half hour, § 87(2)(b) approached the command desk, where PO Choi was sitting. She read his badge number out loud and PO Choi responded, "Oh yeah, you better fucking remember that." § 87(2)(b) asked a uniformed white male officer at the command desk for a form to fill out a complaint against PO Choi. The officer responded, "Listen: you're not writing no fucking complaints. We're the ones that's making complaints here." § 87(2)(b) told the officer that she wasn't speaking to him at that moment. The unidentified officer responded, "You know what, you're not fucking talking to me, this is my fucking precinct." § 87(2)(b) indicated that she would just go to another stationhouse to file a complaint, but also asked why she was not allowed to file a complaint at that stationhouse. The unidentified officer turned to 24-year old § 87(2)(b) and stated, "Get her the fuck out of here before I arrest her." § 87(2)(b) and § 87(2)(b) then left the stationhouse and went home.

§ 87(2)(b) did not positively identify any officers in the photographic arrays. The photo arrays consisted of the following officers: PO Choi, PO Namjou Kim, PO Daniel Lee, PO Christopher Troisi, PO Robert Dibona, PO Sean McGovern, PO Patrick Barrett, PO Kurt Jones, Sgt. Francis McKenna, PO Benjamin Panas, PO Avidan Santiago, PO Jonathan Rosario, PO Aneudy Castillo, PO Louis Meade, PO Omar Hafiz, PO Michael Jurgens, PO Gregory Hamilton, PO Nicholas Mencaroni, PO Michael Oberg, PO Bryan Shannon, PO Evagelos Dimitrakakis, PO Alexander Wancel, PO Dominick Giarmoleo, PO Jeffrey Fitterman, Sgt. Lawrence Fiorello, PO Vincent Calderone, Sgt. Alberto Randazzo, PO Carlo Cifarelli, PO Kenneth Harsch, PO Jonathan Sguigna, PO Geoffrey Wyrick, PO Rafael Laskowski, PO John Wingate, PO Emile Pratt, PO Michael Murphy, PO Sean Lutin, PO Victor Flores, PO Steven Lackos, PO Anthony Lobasso, PO Jerry Klepadlo, PO Jason Lamitola, PO Howard Johnson, PO Thomas Kelly, PO Eric Hatkewitz, PO Mark Stevens, PO Robert Echeverria, PO Guiseppe Lisio, PO Steven McNee, PO William Meehan, Sgt. Robert Crozier, and PO Robert Eilers. She did indicate that PO Patrick Barret, "looked like" the officer in the stationhouse who told her to "get out of the fucking stationhouse." § 87(2)(b) also claimed that PO Avidan Santiago also "looked somewhat like" the officer who spoke to § 87(2)(b) in the living room during the incident. In her second photographic viewing, § 87(2)(b) claimed that Sgt. Christopher Canavan "looked somewhat like" the officer who spoke obscenely to her inside the stationhouse. She did not recognize any other officers from the photographic arrays.

§ 87(2)(b) (enclosure 8-1 to 8-27)

§ 87(2)(b) a § 87(2)(b) is married to § 87(2)(b). § 87(2)(b) was interviewed by the CCRB on May 2, 2007; the interview was conducted in Spanish. She viewed photographic arrays on May 30, 2007. Her statement was relatively consistent with the statements of her husband and brother-in-law, though she added the following details.

According to § 87(2)(b) she was in the kitchen when the officers arrived. PO Choi arrested § 87(2)(b) by placing him against the wall, kicking his legs apart, and handcuffing him. § 87(2)(b) asked § 87(2)(b) to come over to him to collect his belongings, but PO Choi told him to "shut up" as well as other statements in English that § 87(2)(b) did not understand. After § 87(2)(b) was not allowed to enter the apartment, § 87(2)(b) asked in Spanish why his brother was not allowed to enter. PO Choi then threw § 87(2)(b) to the floor and repeatedly struck § 87(2)(b) with a nightstick. PO Choi was also using profanity (in English), though § 87(2)(b) could not recall the exact words. At that point, § 87(2)(b) and § 87(2)(b) (s father) were all present. § 87(2)(b) and her father asked why PO Choi was hitting § 87(2)(b). PO Jackson then grabbed § 87(2)(b) by the arm and pushed her into the living room. § 87(2)(b) protested and PO Jackson then pushed

§ 87(2)(b) into the living room. PO Jackson then requested additional officers to the location and approximately 15-20 officers responded. The officers surrounded § 87(2)(b) and started hitting and kicking him. An unidentified uniformed Indian male entered the apartment with his gun drawn and pointed at § 87(2)(b). The officers then escorted § 87(2)(b) out of the apartment, at which time he appeared to be bleeding profusely from his head.

§ 87(2)(b) did not positively identify any officers in the photographic arrays. The arrays consisted of the following officers: PO Choi, PO Kim, PO Christopher Troisi, PO Robert Dibona, PO Sean McGovern, PO Patrick Barrett, PO Kurt Jones, Sgt. Francis McKenna, PO Benjamin Panas, PO Avidan Santiago, PO Jonathan Rosario, PO Aneudy Castillo, PO Louis Meade, and PO Omar Hafiz.

§ 87(2)(b) (*enclosure 10-1 to 10-24*)

§ 87(2)(b) a § 87(2)(b) Hispanic male, was interviewed by the CCRB and shown a photographic array on May 30, 2007. § 87(2)(g)

§ 87(2)(b) identified PO Choi in the photographic array as the officer who threw § 87(2)(b) to the floor and struck § 87(2)(b) repeatedly on his head, neck, and back with a nightclub. § 87(2)(b) also identified PO Avidan Santiago as one of the officers who entered the apartment and asked what was going on; § 87(2)(b) did not allege any misconduct on the part of PO Santiago. § 87(2)(b) also identified PO Aneudy Castillo as being present, though § 87(2)(b) was not certain of the identification; he did not allege any misconduct on the part of PO Castillo. § 87(2)(b)'s statement reiterated the allegation that an officer pushed him, but he did not describe the subject officer.

§ 87(2)(b) (*enclosure 11-1 to 11-11*)

§ 87(2)(b) a § 87(2)(b), was interviewed by the CCRB on May 30, 2007; the interview was conducted in Spanish. She was also shown a photographic array during the interview. § 87(2)(b) is the mother of § 87(2)(b)'s statement was relatively consistent with the other civilian statements and did not provide any additional information. She did not identify any officers in the photographic arrays.

Officer Identification

Based on the roll call assignments cross-referenced with the SPRINT regarding this incident, the following officers were identified as having responded to the arrest location: PO Choi, PO Jackson, Sgt. McKenna, PO Duplessey, PO Lee, PO Calderone, PO Hafiz, and PO Santiago.

PO Billy Choi (enclosure 12-1 to 12-6)

PO Choi, a § 87(2)(b) Asian male with black hair, had the following memo book entries. At 8:16 PM, PO Choi received a call regarding a possible crime at § 87(2)(b). He arrived at the location at 8:19 PM. At 9:25 PM, PO Choi was en route to Booth Hospital and arrived there at 9:41 PM. He left § 87(2)(b) Hospital at 11:00 PM and arrived at the stationhouse at 11:15 PM. He ended his tour at 2:05 AM.

PO Choi prepared an Aided report in which he stated that he sustained minor abrasions to right hand due to a perpetrator resisting arrest with handcuffs. He was transported to § 87(2)(b) Hospital via van 5622.

PO Choi was treated at § 87(2)(b) Hospital on April 15, 2007 and claimed that he sustained a cut on his right hand after struggling with a perpetrator and cutting his hand on handcuffs.

PO Billy Choi was interviewed at the CCRB on August 8, 2007. On April 15, 2007, PO Choi was assigned to Special Post 2 with PO Anne Jackson during the third tour. The officers were in uniform and working on foot. At approximately 8:19 PM, the officers responded to a radio run of calls for help regarding a father choking his daughter at § 87(2)(b).

Once inside the apartment, the officers encountered § 87(2)(b) and his family, including his mother, his wife and their daughter, § 87(2)(b) seemed worried and scared but PO Choi did not see any visible injuries on her. PO Choi asked § 87(2)(b) what was going on and § 87(2)(b) replied that nothing was going on. PO Jackson spoke with § 87(2)(b) and then signaled to PO Choi, crossing her wrists, indicating that he should arrest § 87(2)(b).

PO Choi stood with § 87(2)(b) in the front hallway of the apartment and told him to turn around such that he was facing the wall. PO Choi began to pull § 87(2)(b)'s arms behind his back and he replied,

“What’s going? What’s going on?” § 87(2)(b) wiggled his body as he did this but PO Choi was able to place him in cuffs without incident. § 87(2)(b) started to yell at PO Choi in an aggressive manner, telling him, in English, “What’s going on? This is my house.” PO Choi had his back to the right hand wall – as one enters – and § 87(2)(b) was facing the left hand wall. PO Choi put over a non-emergency 10-85 for a sergeant to respond to verify the arrest.

At that point, § 87(2)(b) s brother arrived and walked into the apartment. PO Choi asked the brother, “Sir, who are you?” The brother responded that he was § 87(2)(b) s brother and PO Choi told him to wait outside. The brother complied momentarily but then repeatedly approached PO Choi, who spoke louder, in his command voice, directing the brother to stay out in the hallway. Although PO Choi repeatedly raised his voice toward the brother, he did not threaten him with the use of force or call him a “motherfucker.” PO Choi also raised his voice to § 87(2)(b) but did not tell him to “shut the fuck up.” § 87(2)(b) objected (in English) to PO Choi telling his brother not to enter and backed into PO Choi with such force that PO Choi fell backward against the wall. PO Choi felt he was outnumbered by § 87(2)(b) and his brother and put over a second 85, asking for immediate assistance. PO Choi had the radio in his left hand and then placed it back on his belt. PO Choi was holding § 87(2)(b) s cuffs with his right hand. § 87(2)(b) was trying to head butt PO Choi by jerking his head backward over his left shoulder. § 87(2)(b) pulled on the handcuffs, trying to break free of PO Choi’s grip and the cuffs pinched the skin on PO Choi’s hand, breaking the skin.

PO Choi was surprised by § 87(2)(b) s actions and defended himself by grabbing § 87(2)(b) by the handcuffs with his right hand in order to have control over § 87(2)(b) and punching § 87(2)(b) in the face 2-3 times with his left hand. § 87(2)(b) went to the floor face down, perpendicular to the hallway. § 87(2)(b) banged the side of his head on the floor as he fell. PO Choi did not intentionally strike § 87(2)(b) s head against the floor. PO Choi did not recall if anything struck the back of § 87(2)(b) s head. PO Choi carried an asp but denied striking § 87(2)(b) with the asp or any other blunt object. He denied hitting § 87(2)(b) on his legs at any time.

§ 87(2)(b) s wife, seeing that PO Choi had struck § 87(2)(b) in the face, ran toward PO Choi and got within 2 feet of him, trying to punch him. However, she did not make contact and PO Jackson pushed her back into the living room. PO Choi did not see PO Jackson shove a male or see a male fall down in the living room. § 87(2)(b) was still wiggling and resisting as he lay on the floor. Within seconds, backup arrived and a “good number” of officers entered the apartment and pulled PO Choi out into the hallway. § 87(2)(b) was bleeding from his face area as he lay on the floor before the officers removed PO Choi. PO Choi was in shock and only had 4 months on the job at the time of the incident; he did not recall any of the officers who responded and entered the apartment. PO Choi could not describe what force the officers used against § 87(2)(b) if any. PO Choi did not see any of these officers strike § 87(2)(b) in the head with blunt objects or kick or strike him in the legs. He did not know how § 87(2)(b) sustained his injury. PO Choi did not recall if any officers had their gun, asp or nightstick drawn when they entered the apartment.

PO Choi was in the hallway outside the apartment talking to EMTs who had responded to the location when the officers brought § 87(2)(b) out. He did not recall § 87(2)(b) s physical condition at that time and could not remember if § 87(2)(b) walked out of his own will. The EMTs suggested that PO Choi go to the hospital to have his hand wound cleaned and treated. When shown photographs of § 87(2)(b) s injuries obtained by the CCRB from § 87(2)(b) PO Choi did not know how § 87(2)(b) sustained the injuries.

Near end of tour, PO Choi was in the 115th Precinct stationhouse and saw § 87(2)(b) come in. According to his memo book, PO Choi was in the stationhouse from 11:15 PM on April 15, 2007 to 2:05 AM on April 16, 2007. § 87(2)(b) loudly stated that she wanted to file a complaint against every officer at the arrest location. § 87(2)(b) did not ask PO Choi to file a civilian complaint, but she did ask him for his name. PO Choi pointed to his shield and § 87(2)(b) spelled out his name from reading it on the shield. PO Choi continued with his line of duty paperwork as he had just returned from the hospital and had no further interaction with § 87(2)(b) PO Choi did not know which other officers were present at the stationhouse at that time. PO Choi did not see any officers telling § 87(2)(b) that she could not file a complaint.

PO Anne Jackson (enclosure 18-1 to 18-17)

PO Jackson, a 5’9” 215-pound § 87(2)(b) old white female with brown hair, had the following memo book entries. At 8:10 PM, she responded to a report of a possible crime at § 87(2)(b) § 87(2)(b)

with PO Choi backing her up. At 8:53 PM, an arrest was made. At 9:05 PM, PO Jackson returned to her command. At 9:06 PM, she returned items belonging to § 87(2)(b) a brown wallet, a Samsung phone, a black leather case, keys, pens, chapstick, red hat, and \$200.61. PO Jackson returned the items to § 87(2)(b) Jr., § 87(2)(b)'s nephew. PO Jackson also indicated that N11389 was the SPRINT number for the domestic incident report. The victim refused medical attention and photos. At 10:30 PM, PO Jackson processed § 87(2)(b)'s arrest report and finished at 12:00 AM. At 12:10 AM, PO Jackson notified Det. Ciccone and called the victim § 87(2)(b) to come in to take pictures of her injury. At 1:30 AM, § 87(2)(b) came to the stationhouse, but refused to prosecute the criminal complaint. At 3:05 AM, PO Jackson ended her tour.

PO Jackson prepared the complaint report regarding § 87(2)(b)'s complaint. In the narrative section, PO Jackson stated: "at time and place of occurrence, complainant/victim states her father intended to cause physical injury to her by choking and pushing her, causing visible bruises to neck and wrist. Victim refused medical aid and left the scene after her father was arrested. Complainant/victim refused to take photos of injuries. Father resisted arrest, preventing officers from restraining him. At location, brother of the father entered apartment and prevented officers from making initial arrest. Warrant check on defendants revealed no active warrants.

PO Jackson prepared the arrest report regarding § 87(2)(b)'s arrest. She charged him with one count of assault with intent to cause physical injury and one count of resisting arrest. Physical force was used in order to "restrain/control/remove." In the details section, PO Jackson stated: "At time and place of occurrence, defendant intended to cause physical injury to daughter by choking and pushing her, causing bruises to neck and wrist. Defendant resisted arrest, preventing officer from restraining defendant. Warrant check on defendant revealed no active warrants."

PO Jackson prepared the arrest report regarding § 87(2)(b)'s arrest. PO Jackson charged § 87(2)(b) with obstruction of governmental administration and resisting arrest. Physical force was used in order to "restrain/control/remove." In the details section, PO Jackson stated: "at time and place of occurrence, defendant intentionally obstructed and prevented public servants from performing an arrest. Warrant check on defendant revealed no active warrants."

PO Jackson prepared a line-of-duty witness report regarding PO Choi's injury. In the report, PO Jackson stated that § 87(2)(b) resisted the arrest by pushing and fighting with PO Choi. PO Choi sustained minor injuries to his right hand.

PO Jackson was interviewed by the CCRB on August 16, 2007. Her statement was relatively consistent with that of her partner, though she added the following details. PO Jackson went to the back room and saw § 87(2)(b) who was crying and appeared to have redness marks on her neck and wrists. PO Jackson asked § 87(2)(b) what had happened and she told the officer that her father § 87(2)(b) had choked her. PO Jackson then turned to her partner and crossed her wrists to indicate to him that he should arrest § 87(2)(b). PO Choi was standing next to the father at that point. § 87(2)(b) became belligerent and started moving around. PO Choi was trying to handcuff § 87(2)(b) but he kept moving around. The two men were in a small confined space. PO Choi was able to handcuff § 87(2)(b)'s hands, but the two of them fell to the ground. PO Jackson believed that § 87(2)(b) hit his head against the wall as he fell. § 87(2)(b) continued moving around and struggling with PO Choi. PO Jackson did not see PO Choi cut his hand, but learned about it later. PO Jackson was trying to make sure everything was okay, at which time the mother – § 87(2)(b) – got on PO Jackson's back in an effort to get to her husband. The grandfather – § 87(2)(b) – also tried to get around PO Jackson. PO Jackson, using her right hand, held § 87(2)(b) back, and then pushed § 87(2)(b) back. PO Jackson was holding her radio in her left hand and called an 85 asking for more help.

At that point, another individual, § 87(2)(b) was at the door. PO Jackson believed he arrived at the time that § 87(2)(b) was already on the floor. § 87(2)(b) was trying to enter, but PO Jackson told him repeatedly to leave. § 87(2)(b) stepped out of the space, but then stood in the doorway. A few minutes after calling the 85, numerous officers responded and pushed PO Jackson into the other room with the rest of the family members. PO Jackson later stated that she actually was able to walk to the living room because § 87(2)(b) and § 87(2)(b) had stopped trying to get to PO Choi and § 87(2)(b). PO Jackson remained with the civilians in the other room. She did not see what the other officers did to § 87(2)(b) and did not hear what was going on.

PO Jackson did not know what triggered the incident to spiral out of control. She believed that it might have been that § 87(2)(b) was being arrested. PO Jackson denied that PO Choi used profanity or directed profanity at § 87(2)(b) or § 87(2)(b). PO Jackson did not hear § 87(2)(b) make any comment to

the effect of, “This is my house, why can’t my brother come in?” PO Jackson never saw PO Choi punching or striking § 87(2)(b) at any point. PO Jackson did not push § 87(2)(b) or § 87(2)(b)

Sgt. Francis McKenna came to the scene and entered the living room. The officers obtained everyone’s information. PO Jackson did not know if any other supervising officers responded to the location. § 87(2)(b) left before PO Jackson could get her information and PO Jackson ended up getting the information from § 87(2)(b). When PO Jackson left, she noticed blood on the walls where PO Choi and § 87(2)(b) struggled with each other, though she did not recall seeing blood on the floor. EMTs were still on the scene. PO Jackson was transported to the stationhouse, where she processed § 87(2)(b)’s arrest.

At the stationhouse, PO Jackson spoke with § 87(2)(b) in the waiting area, though § 87(2)(b) did not want to pursue the criminal complaint. § 87(2)(b) complained about the fact that her father was arrested and that the officers had mistreated him. She did not ask PO Jackson to file a CCRB complaint, though. When § 87(2)(b) informed PO Jackson that she was not going to pursue the prosecution, PO Jackson left and went back to the finish processing the arrest. PO Jackson initially did not recall who was present, but upon further questioning indicated that Sgt. Christopher Canavan spoke with § 87(2)(b). PO Jackson denied that § 87(2)(b) acted disorderly at the stationhouse. She only sat down and said that she wanted to wait to see PO Choi. PO Jackson did not see or hear any officers speak discourteously to § 87(2)(b) in the stationhouse or threaten to arrest her if she did not leave. PO Jackson next saw § 87(2)(b) at the stationhouse the next day, at which time his head had been wrapped in a bandage.

PO Omar Hafiz (enclosure 14-1 to 14-4)

PO Hafiz, a 5’6” 165-pound § 87(2)(b) old Asian male with black hair, had the following memo book entries. At 8:26 PM, PO Hafiz received a 10-85 (request for backup) at § 87(2)(b). At 8:37 PM, PO Hafiz arrived at the location. He resumed patrol at 9:00 PM.

PO Hafiz was interviewed at the CCRB on September 25, 2007. On April 15, 2007, PO Hafiz was assigned to patrol sector H with PO Avidan Santiago. According to PO Hafiz, he and PO Santiago arrived at the location with the door open and § 87(2)(b) struggling with PO Choi. § 87(2)(b) was not in handcuffs at that time. PO Choi was trying to cuff § 87(2)(b) but he was flailing his arms. PO Hafiz grabbed § 87(2)(b)’s right arm while PO Santiago attempted to grab him in a bear hug from behind. § 87(2)(b) was flailing his arms and the officers were not able to control him. PO Hafiz did not recall what PO Choi was doing at this point. Two other officers – PO Vincent Calderone and PO Daniel Lee – then entered the apartment and tried to gain control of § 87(2)(b) who pushed his way through the officers and out into the hallway, outside the apartment. § 87(2)(b) was not bleeding from the head at this point.

Because there were too many officers trying to gain control of § 87(2)(b) PO Hafiz proceeded further into the apartment, where § 87(2)(b)’s daughter was trying to show him her neck, which was bruised, and told him that her father had choked her. § 87(2)(b)’s daughter and wife were also trying to push their way toward § 87(2)(b) and PO Hafiz held them back, standing near the door to the kitchen. PO Hafiz did not see what PO Jackson was doing at this point or recall her location, nor could he recall if there were any other family members present or an elderly Hispanic male. PO Hafiz did not see the other officers handcuff § 87(2)(b) because he was dealing with the wife and daughter; he denied being involved in the arrest. When PO Hafiz returned to the hallway outside the apartment, § 87(2)(b) was in handcuffs, sitting on the floor, and bleeding heavily from his head. PO Choi showed PO Hafiz a laceration on PO Choi’s hand and told him, “I got bit.” PO Hafiz did not see PO Choi get bitten. PO Hafiz identified PO Jeffrey Fitterman from the photo arrays as being present at the scene. He did not recognize any other officers.

PO Hafiz denied drawing his gun during the incident and denied that any other officers drew their weapons. PO Hafiz denied striking § 87(2)(b) at any time and did not recall any other officers striking § 87(2)(b). PO Hafiz provided no additional information.

PO Avidan Santiago (enclosure 15-1 to 15-6)

PO Santiago, a 5’5” 140-pound § 87(2)(b) old Hispanic male with black hair, had memo book entries identical to his partner (PO Hafiz).

PO Santiago was interviewed by the CCRB on September 27, 2007. PO Santiago claimed that he was not involved in § 87(2)(b)’s arrest. Instead, he claimed that he interacted with § 87(2)(b)’s family, speaking to them in Spanish and finding out the details of what happened. Upon entering the apartment door, PO Santiago saw PO Billy Choi, PO Anne Jackson and § 87(2)(b) standing in the hallway of the apartment and arguing. § 87(2)(b) had his back to the wall and was facing PO Choi and

PO Jackson. PO Santiago could not recall if § 87(2)(b) was in handcuffs or not. § 87(2)(b) had no injuries at this point. PO Santiago denied drawing his gun at any time.

PO Santiago then heard a commotion in the hallway behind him and looked over, seeing § 87(2)(b) with PO Choi and several other officers. The officers were telling § 87(2)(b) “Sir, we need you to exit the apartment.” § 87(2)(b) was resisting by moving his shoulders around. PO Santiago could not tell if he was cuffed or if his hands were in front or behind him. PO Santiago walked back into the hallway, extended his asp, held it by the ends with both hands, and used it to push § 87(2)(b) s upper body, from behind, and move him toward the doorway of the apartment. PO Hafiz was there as well, trying to move § 87(2)(b) out into the hallway. PO Santiago did not strike § 87(2)(b) with his asp or kick or punch him. § 87(2)(b) had no injuries at this time.

As PO Santiago was pushing § 87(2)(b) out of the apartment, he noticed that the family was approaching again from the area of the living room. He collapsed his asp and returned to the family, speaking to them in Spanish, telling them to calm down and to remain in the living room. They complied. PO Santiago then exited the apartment, saw § 87(2)(b) standing in the hallway of the building verbally arguing with numerous officers. Sgt. McKenna was present in the hallway outside the apartment, as was PO Choi, who was holding his hand as though it was injured. § 87(2)(b) was standing and had no injuries at this time.

An unidentified male officer in a white shirt asked PO Santiago if several civilians who were coming up the stairs were involved in the incident. PO Santiago responded that they were not involved and the officer told PO Santiago to remove them from the building. PO Santiago escorted them downstairs and outside the building. PO Santiago denied having any further involvement in § 87(2)(b) s arrest. PO Santiago did “crowd control” until he saw EMTs bring § 87(2)(b) out of the building. He had a bandage around his head. They were followed by approximately 30 other police officers whose identities he did not recall. PO Santiago provided no additional details.

PO Jeffrey Fitterman (enclosure 16-1 to 16-3)

PO Fitterman, a 5’10” 160-pound § 87(2)(b) old white male with brown hair, had the following memo book entries. At 8:10 PM, he received a radio call for help at 94-11 34th Road regarding an emotionally disturbed person. PO Fitterman had blood on his hand from the EDP. He was not able to obtain an exposure number on the weekend.

PO Fitterman was interviewed by the CCRB on October 2, 2007. On April 15, 2007, PO Fitterman was assigned to the Street Narcotics Enforcement Unit with PO Alexander Wancel. The officers were in uniform and used a black unmarked vehicle. According to PO Fitterman, § 87(2)(b) was on the ground and flailing his arms when PO Fitterman arrived at the scene; approximately 7-8 officers were struggling with him, trying to handcuff him. PO Fitterman pushed down on § 87(2)(b) s back to try to gain control of § 87(2)(b) so that the other officers could handcuff him, which they subsequently did. PO Fitterman saw that he had blood on his hands and did not know if it was from § 87(2)(b) a wall (because he saw blood on a wall) or another officer. PO Fitterman exited the apartment and saw that EMS was arriving so he went downstairs and asked them to clean off his hands. He then left the location.

PO Fitterman denied pointing his firearm at § 87(2)(b) or seeing any other officer do so. PO Fitterman denied drawing his gun. He denied hitting § 87(2)(b) and denied that any other officers did so. PO Fitterman could not identify any of the officers on scene. He did not recall another defendant being arrested on scene or if there were any other civilians in the hallway or inside the apartment.

PO Fitterman returned to the stationhouse to request an exposure number but when he called to get one he found that the office was closed as it was the weekend. PO Fitterman did not recall any civilians coming to the precinct to request information about the arrest or to file a complaint.

PO Alexander Wancel (enclosure 19-1 to 19-3)

PO Wancel, a 5’8” 190-pound § 87(2)(b) old Hispanic male with black hair, had no memo book entries regarding this incident. PO Wancel was partnered with PO Fitterman and assigned to patrol sector H.

PO Wancel was interviewed at the CCRB on October 18, 2007. According to PO Wancel, when he and PO Fitterman arrived, there were approximately 3-5 officers struggling with § 87(2)(b) who was on the floor. § 87(2)(b) was not handcuffed. PO Wancel and PO Fitterman each grabbed § 87(2)(b) – by a leg or an arm – and held him down on the floor. § 87(2)(b) was trying to prevent the officers from handcuffing him by flailing his arms. Eventually, an unidentified officer handcuffed § 87(2)(b) though

PO Wancel could not describe how this occurred. PO Wancel denied that any of the officers struck § 87(2)(b). PO Wancel denied drawing his gun or asp at any time and he denied hitting § 87(2)(b). Once § 87(2)(b) was handcuffed, the officers then lifted him to his feet and PO Wancel noticed that § 87(2)(b) was bleeding from the head. PO Wancel did not know how § 87(2)(b) sustained the injury. PO Wancel could hear other civilians in the apartment, but he did not interact with them. At that point, PO Wancel and PO Fitterman determined that the situation was under control and they went back outside to the street, where PO Fitterman had an EMT clean blood off his hand.

PO Wancel recalled returning to the stationhouse that night but did not recall the defendant's family coming to the stationhouse. PO Wancel did not see any male Hispanics, other than § 87(2)(b) go to the floor inside the apartment.

PO Daniel Lee (enclosure 17-1 to 17-6)

PO Lee, a 5'8" 150-pound § 87(2)(b)-old Asian male with black hair, had the following memo book entries. At 8:25 PM, PO Lee responded to a 10-13 (emergency request for backup) at § 87(2)(b). At 8:35 PM, PO Lee noted that two arrests were made by the post (PO Choi) that initially requested backup officers. PO Lee then resumed patrol.

PO Lee was interviewed by the CCRB on October 13, 2007. On April 15, 2007, PO Lee was assigned to SP10 Patrol with PO Vincent Calderone. When they arrived on-scene, there were numerous marked and unmarked cars outside the location and approximately 15 police officers inside the building, both in the hallway and inside the apartment. The door to the apartment was open and there were numerous officers inside. PO Lee saw that officers were standing with a male civilian, inside the apartment, and the civilian was yelling. PO Lee did not recall if the civilian was cuffed or not. He was extremely evasive when asked about what the civilian and officers were doing at this point. He stated that there was "probably" a physical struggle but that he did not see it.

PO Lee denied being involved in the arrest or any physical confrontation. Instead, he claimed that he interacted with numerous civilians further inside the apartment. PO Lee used "verbal judo" to try and calm the civilians down. They were yelling in Spanish and he did not know what they were saying. There was a female officer with him, dealing with the family as well, though PO Lee did not identify her. Neither PO Lee nor the female officer with him shoved any family members and PO Lee did not recall seeing any family members falling to the floor. PO Lee did not hear anything behind him and did not note any struggle in the entryway to the apartment. PO Lee then decided that the situation was under control and that there were enough officers on-scene so he turned and left the apartment. As he exited the apartment he saw blood on the floor and saw § 87(2)(b) being escorted down the stairs by officers. When PO Lee exited the building he saw § 87(2)(b) standing outside bleeding from the head. PO Lee did not know how this injury was sustained. PO Lee denied striking § 87(2)(b) and did not have his gun or asp drawn upon entering the apartment. PO Lee did not see any other officers striking the defendant.

PO Vincent Calderone (enclosure 20-1 to 20-6)

PO Calderone, a 6'1" 280-pound § 87(2)(b)-old white male with brown hair, had the following memo book entries. At 8:25 PM, he responded to a 10-85 (request for backup) at § 87(2)(b) third floor by an officer assigned to Operation Impact. At 8:35 PM, PO Calderone indicated that the Impact officer had made two arrests and he then resumed patrol.

PO Calderone was interviewed by the CCRB on October 17, 2007. His statement was consistent with that of PO Lee, though PO Calderone also claimed that he too interacted with § 87(2)(b)'s family along with PO Lee and another female officer (PO Jackson, though PO Calderone could not identify her). PO Calderone denied being involved in the arrest and denied seeing any officers striking § 87(2)(b). PO Calderone claimed that he never saw any officers use force against § 87(2)(b).

Sgt. Francis McKenna (enclosure 13-1 to 13-4)

Sgt. McKenna, a 6'2" 220-pound § 87(2)(b)-old white male with brown hair, had the following memo book entries. At 8:38 PM, he responded to a 10-85 (request for backup) by PO Choi and PO Jackson. He arrived at 8:42 PM and noted two arrests made by PO Choi and PO Jackson at 8:52 PM. PO Choi sustained a minor injury to his hand. At 9:00 PM, Sgt. McKenna was at the stationhouse for administrative duties. He resumed patrol at 9:34 PM.

Sgt. McKenna was interviewed at the CCRB on August 14, 2007. On April 15, 2007, Sgt. McKenna was assigned as the Impact Patrol Sergeant of the 115th Precinct, though he also served as the

overall patrol supervisor because the regular patrol supervisor, Sgt. Fulmore, was handling a homicide investigation. PO Sergot Duplessey was Sgt. McKenna's partner. According to Sgt. McKenna, he arrived after the arrests had been made. Sgt. McKenna noted that § 87(2)(b) was handcuffed and sitting on the floor with a bleeding laceration on his head. § 87(2)(b) was not injured. Sgt. McKenna spoke with PO Choi about the arrests. Sgt. McKenna believed that § 87(2)(b) had obstructed the arrest of § 87(2)(b) and tried to head-butt PO Choi. PO Choi took § 87(2)(b) to the floor and § 87(2)(b)'s head hit the floor, causing the laceration. Sgt. McKenna did not interview any civilians or any other officers on the scene. There were approximately 25 officers on the scene, though he could not identify the officers. Sgt. McKenna provided no additional information.

Sgt. Christopher Canavan (enclosure 21-1 to 21-6)

Sgt. Canavan, a 6', 300-pound § 87(2)(b) old white male with black hair, had no memo book entries regarding this incident or any interaction with § 87(2)(b).

Sgt. Canavan was interviewed by the CCRB on March 6, 2008. On April 15, 2007, Sgt. Canavan was assigned as the club enforcement supervisor. PO Bauer and PO Mota were his partners. According to his memo book, Sgt. Canavan responded to the stationhouse at 2:24 AM with PO Miller. He did not recall a Hispanic female entering the stationhouse at that time attempting to file a complaint. He did not recall any civilians acting disorderly inside the stationhouse while he was there or any officers threatening to arrest a disorderly civilian in the stationhouse. Sgt. Canavan resumed patrol from the stationhouse at 2:35 AM. He provided no additional information.

PO Patrick Barrett (enclosure 22-1 to 22-4)

PO Barrett, a 6'3" 240-pound 36-year old white male with black hair, had no memo book entries regarding this incident. According to his memo book, he ended his tour at 11:35 PM.

PO Barrett was interviewed by the CCRB on June 23, 2008. On April 15, 2007, PO Barrett was assigned to stationhouse duty during the third tour. PO Barrett had no partner and explained that his duty as stationhouse security was to stand at the rear of the stationhouse and watch the Precinct gas pumps. PO Barrett explained that the only time he would go near the command desk would be to use the bathroom (as the bathroom was near the command desk). He explained that his contact with civilians in that posting was limited and the post routinely involved no contact with civilians. PO Barrett ended his tour at 11:35 PM and did not work any overtime. He did not work again until the following day when he reported to duty at 3:40 PM on April 16, 2007. (He was assigned to patrol sectors in the Precinct that day.)

PO Barrett had no knowledge of the domestic violence incident at the § 87(2)(b) household and had no knowledge of a female civilian going to the stationhouse to file a complaint regarding the incident while he was on duty on April 15, 2007. He did not interact with any civilians while he was working as the stationhouse security detail. He provided no additional details.

Additional Officer Statements

No statements were obtained from PO Duplessey or Sgt. Fulmore. PO Duplessey is an African-American male. None of the civilian statements alleged that an African-American male was involved in the arrests of § 87(2)(b) or § 87(2)(b). Sgt. Fulmore is also an African-American male. Furthermore, Sgt. McKenna noted that Sgt. Fulmore was handling a homicide investigation and did not respond to the incident. As a result, the investigation determined that statements from PO Duplessey and Sgt. Fulmore would not provide any additional information or alter the recommended dispositions.

PO Robert Eilers, a white male officer, was assigned as the telephone switchboard operator during the first tour on April 16, 2007. § 87(2)(b) viewed his photograph in the photographic array, but she indicated that he was not the subject officer. Furthermore, telephone switchboard operators are assigned to handle incoming telephone calls and their interaction with civilians is typically restricted to the telephone. As a result, no statement was obtained from him.

Medical Records (enclosure 23-1 to 23-29 and 24-1 to 24-17)

EMTs treated § 87(2)(b) at approximately 8:40 PM, at which time § 87(2)(b) was visibly bleeding and was found to have a laceration to the back of the right side of his head as well as a laceration to his right lower leg. The EMTs bandaged his head and right leg. The EMTs transported § 87(2)(b) to § 87(2)(b) Hospital along with PO Tamara Pippinsgreaves.

At § 87(2)(b) Hospital, X-rays were taken, but no fractures were found. The laceration on his head was found to be one centimeter deep and was defined as a “slight laceration”; it was located in the left occipital region (back of his head). § 87(2)(b) was also found to have a one-centimeter laceration on his right leg below his knee. The medical personnel noted that § 87(2)(b) had been in an argument with his daughter, who called 911. After officers arrived, § 87(2)(b) resisted arrest and was assaulted on his head, torso, and extremities. § 87(2)(b)'s scalp laceration was sutured using staples. He was prescribed Ibuprofen, a pain relief medication and also given a tetanus shot. § 87(2)(b) was diagnosed as having a “minor head injury” and was instructed to remove the sutures in 3-5 days.

PO Choi was treated at § 87(2)(b) Hospital on April 15, 2007 for abrasions to his right hand. His wound was washed and bacitracin (an over-the-counter pain relief cream) was applied to the wound.

IAB Investigation (enclosure 25-1 to 25-24)

According to IAB call out log, 07-14580, IAB generated a case regarding this incident when ADA James Liander of the Queens Rackets Bureau called IAB to report that the Queens District Attorney press office had received a call from the New York Post regarding the arrest of § 87(2)(b) Sgt. Michael Mensch of the NYPD Internal Affairs Bureau investigated IAB's duplicate complaint of this incident. Sgt. Mensch unsubstantiated the case. Deputy Inspectors Patrick Keane and George O'Brien reviewed the case and concurred with the unsubstantiated finding.

NYPD Records (enclosure 26-1 to 26-110)

The third tour roll call from the 115th Precinct confirmed that Sgt. McKenna was the Impact Sergeant, PO Jackson was assigned to special post 1, PO Choi was assigned to special post 2, PO Lee and PO Calderon were assigned to special auto 10, PO Santiago and PO Hafiz were assigned to sector H, PO Fitterman and PO Wancel were assigned to SNEU.

SPRINT N11389 and the accompanying recording of the police communications indicated that a female Spanish speaker (identified by the investigation as § 87(2)(b)) contacted 911 at 8:04 PM on April 15, 2007 stating, “...no me tocas [don't touch me]. No puedo estar en tu casa [I can't stand being in your house].” § 87(2)(b) then told the operator that her father was “beating” her and audibly provided her address. § 87(2)(b) then stated “No! Give me the phone!” § 87(2)(b) could then be heard yelling, “I don't care. I'll leave the house! I don't care. Me voy [I'm going]! No me importa [it doesn't matter to me]!” The call continued for approximately another minute and fifteen seconds, during which an unidentified male and female could be heard speaking in Spanish. § 87(2)(b) could not be heard.

At 8:08 PM, the Central Dispatcher called § 87(2)(b) back and § 87(2)(b) provided her address a second time: § 87(2)(b). § 87(2)(b) also stated, “he beat me up and he started choking me and when I called you guys, he took the phone and he threw it away and he started choking me.” The dispatcher asked who the perpetrator was and § 87(2)(b) identified her father; she also indicated that he was still at the location and that she did not need an ambulance.

At 8:09 PM, the dispatcher provided the correct address over the air. At 8:10 PM, 115 special posts 1 and 2 (PO Anne Jackson and PO Billy Choi) accepted the job; they arrived at the location at 8:14 PM. At 8:26 PM, PO Choi requested the Impact Sergeant (Sgt. McKenna) to respond to the location and indicated that the situation was not an emergency at that time. [PO Choi's voice is clear and calm.] The dispatcher raises Sgt. McKenna and asks him to respond to the location. At 8:27 PM, special posts 1 and 2 requested emergency back-up; noise can be heard in the background of the recording. At 8:28 PM, Sector H [PO Santiago and PO Hafiz], Impact post 10 [PO Lee], and a supervisor indicated that they were responding. At 8:29 PM, PO Santiago and PO Hafiz indicated that they were outside the building, but looking for the apartment. Within the same minute, an unidentified officer requested PO Choi or PO Jackson to respond via radio. An open channel broadcasted sounds of screaming and sirens. At 8:30 PM, PO Jackson could be heard screaming over sounds of screams in the background; PO Jackson restated the address. Also at 8:30 PM, an unidentified officer stated, “No further.” The dispatcher asked the unit if they were advising no further and the unit responded, “No further!” At 8:31 PM, a sergeant affirmed the “no further units” request and indicated that he was present at the location. At 8:32 PM, Sector H [PO Santiago and PO Hafiz] requested EMS to the location for “excessive” bleeding from the head. The sector unit was shouting the request and indicated that no officers were injured. The unit then went back over the air and stated, “One member of service with a bite to the hand, Central.” At 8:33 PM, Sgt. McKenna requested an ambulance to the location. At 8:34 PM, Sgt. McKenna indicated that the injuries to the member of service were “minor injuries to the hand.” EMS arrived on the scene at 8:37 PM. Sector H also reported to the

dispatcher that they arrived at the location at that time. At 8:44 PM, Sector C [PO Castillo and PO Meade] acknowledged the call. At 8:53 PM, PO Choi reported one arrest. At 9:08 PM, Sector C resumed patrol. At 9:49 PM, the patrol supervisor and Sector H resumed patrol. At 10:51 PM, PO Jackson resumed patrol. At 11:39 PM, PO Choi disposed of the job as “arrest made.”

PO Jackson presented § 87(2)(b) to the command desk at 8:50 PM. His physical condition was listed as “apparently normal.” He was transported to Central Booking at 12:40 AM. Sgt. McKenna verified the arrest. The command log indicated that at 8:56 PM, PO Fitterman requested an exposure number, but was unable to be granted one by the sick desk on the weekend. PO Fitterman spoke with Sgt. Kenneth Smith of the Medical Division regarding contact with blood; no exposure number was listed on the command log.

PO Jackson presented § 87(2)(b) to the command desk at 10:46 AM on April 16, 2007. His physical condition was listed as “apparently normal,” though the medical attention box indicated that § 87(2)(b) had requested medical attention. The entry indicated that he had stitches to his right leg and the back of his head. § 87(2)(b) was transported to Central Booking at 11:00 AM. Sgt. McKenna verified the arrest.

§ 87(2)(b)

§ 87(2)(b)

Civilian CCRB History (enclosure 2-1 to 2-5)

This is the first and only CCRB complaint for each of the civilians.

Officer CCRB History (enclosure 1-1 to 1-8)

PO Jackson has no substantiated CCRB allegations in her one year with the NYPD.

PO Choi has no substantiated CCRB allegations in his one year with the NYPD.

PO Lee has no substantiated CCRB allegations in his three years with the NYPD.

PO Calderone has one substantiated CCRB allegation (for refusal to process civilian complaint) in his three years with the NYPD. Panel 12B-2006 recommended charges for the substantiated allegation in case 200609865. PO Calderone received instructions.

PO Hafiz has no substantiated CCRB allegations in his four years with the NYPD.

PO Santiago has no substantiated CCRB allegations in his four years with the NYPD.

PO Fitterman has no substantiated CCRB allegations in his three years with the NYPD.

PO Wancel has no substantiated CCRB allegations in his three years with the NYPD.

Conclusions and Recommendations

Attribution of Allegations

Based on the description of the subject officer provided by § 87(2)(b) and § 87(2)(b)'s identification of PO Choi in the photo array and PO Choi's own statement, PO Choi was identified as the subject officer who allegedly spoke obscenely to § 87(2)(b) and § 87(2)(b) (allegation A), threatened § 87(2)(b) with the use of force (allegation B), and used physical force against § 87(2)(b) (allegation C). § 87(2)(b)'s statement indicated that the same officer who used force against § 87(2)(b) also spoke obscenely to § 87(2)(b) at the 115th Precinct stationhouse; as a result, allegation P was pleaded against PO Choi as well.

§ 87(2)(b) and § 87(2)(b) identified PO Jackson based on description as the officer who held the civilians back from the room and allegedly used physical force against § 87(2)(b) and § 87(2)(b). PO Jackson confirmed that she stood in the living room in an effort to prevent the civilians from interfering with the arrest of § 87(2)(b). Allegation D is pleaded against PO Jackson.

§ 87(2)(b) did not identify in the photographic arrays the officer who allegedly pointed a gun at § 87(2)(b). The officers did not identify the officer who allegedly pointed a firearm. Allegation E is pleaded against “an officer.”

None of the officers identified the subject officer who allegedly struck § 87(2)(b) with a nightstick. Furthermore, the civilians provided divergent descriptions of the subject officer. The officer who acknowledged taking out his asp – PO Santiago – did not match the description of the subject officer. All of the officers denied that § 87(2)(b) was struck with a nightstick or asp. Allegation F is pleaded against “an officer.”

§ 87(2)(b) and § 87(2)(b) alleged that numerous officers used physical force against § 87(2)(b) but they did not identify any specific officers in the photographic arrays. The investigation identified the following officers as responding to the incident: PO Hafiz, PO Santiago, PO Calderone, PO Lee, PO Fitterman, and PO Wancel. PO Santiago admitted to pushing § 87(2)(b) with an asp, but denied striking § 87(2)(b) with the asp at any point. Allegation G is pleaded against him. PO Santiago also admitted to grabbing § 87(2)(b) by the arms, as did PO Hafiz. Allegations H and I are pleaded against PO Santiago and PO Hafiz, respectively. PO Hafiz indicated that PO Calderone and PO Lee also assisted in the arrest of § 87(2)(b). Although PO Lee and PO Calderone denied being involved in § 87(2)(b)'s arrest, the investigation credited PO Hafiz's statement on this point. Force allegations J and K are being pleaded against PO Calderone and PO Lee, respectively. PO Fitterman and PO Wancel admitted to using physical force against § 87(2)(b). Allegations L and M are pleaded against PO Fitterman and PO Wancel, respectively.

§ 87(2)(b) claimed that an unidentified uniformed Asian male officer pushed him against the wall and searched him prior to being handcuffed. None of the officers including PO Jackson, his arresting officer, identified who actually arrested § 87(2)(b). § 87(2)(b) also failed to identify an officer in the photographic array and no other civilian identified a subject officer in his statements/arrays. Allegations N and O are pleaded against “an officer.”

§ 87(2)(b) alleged that an unidentified officer refused to process her CCRB complaint and spoke obscenely to her at the 115th Precinct stationhouse; she did not positively identify an officer in the photographic arrays and did not provide a substantive description of the subject officer that could identify the subject officer. However, in the photo arrays, § 87(2)(b) noted that PO Patrick Barrett “looked like” the subject officer. However, PO Barrett ended his tour on April 15, 2007 at 11:35 PM and did not work again until 3:40 PM on April 16, 2007. According to the 115th Precinct first tour roll call for April 16, 2007, PO Robert Eilers was the only white male officer assigned to the stationhouse at the time of the incident. However, after viewing his photograph in the photographic array, § 87(2)(b) indicated that PO Eilers was not the subject officer. The desk officer – Sgt. Alberto Randazzo – is an Hispanic male; his photo was viewed as well, but § 87(2)(b) did not identify him as the subject officer. As a result, no identification could be made. Allegation Q is pleaded against “an officer.”

Undisputed Facts

§ 87(2)(b) and § 87(2)(b) were involved in an argument and § 87(2)(b) called 911 to report that § 87(2)(b) was choking her. PO Choi and PO Jackson responded and were the first officers on the scene. PO Choi handcuffed § 87(2)(b). § 87(2)(b) came over to the arrest location but PO Choi prevented him from entering the apartment. A physical struggle ensued between PO Choi and § 87(2)(b). The officers requested back-up and the following officers responded: Sgt. McKenna, PO Hafiz, PO Santiago, PO Calderone, PO Lee, PO Fitterman, and PO Wancel. Physical force was used against § 87(2)(b) and he sustained lacerations to the top of his head and lower right leg. The scalp laceration required sutures, which § 87(2)(b) obtained at § 87(2)(b) Hospital. § 87(2)(b) was also arrested and transported to the 115th Precinct stationhouse. § 87(2)(b) went to the stationhouse later that night.

Disputed Facts

§ 87(2)(b), § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(b), § 87(2)(g)

[REDACTED]

[REDACTED]

Allegations Not Pleaded

No discourtesy or threat of arrest allegations are being pleaded regarding § 87(2)(b)'s claim that an unidentified officer spoke obscenely to her and threatened to arrest her while refusing to process her CCRB complaint. The discourtesy and threat of arrest allegations are being subsumed under the refusal to process a CCRB complaint allegation.

- Allegation A. Discourtesy – PO Billy Choi spoke obscenely and rudely to § 87(2)(b) and § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.***
- Allegation B. Abuse of Authority – PO Billy Choi threatened § 87(2)(b) with the use of force in the vicinity of § 87(2)(b) in Queens.***

As noted above, no determination can be made regarding these two allegations. PO Choi denied speaking obscenely to any of the civilians or threatening to use physical force against § 87(2)(b) § 87(2)(g)

- Allegation C. Force – PO Billy Choi used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.***

As noted above, PO Choi was forthcoming in admitting to punching § 87(2)(b) several times in the face while § 87(2)(b) was handcuffed. § 87(2)(b), § 87(2)(g)

Patrol Guide procedure 203-11 directs officers to use the minimum necessary physical force when effecting arrests and/or overcoming resistance. § 87(2)(b), § 87(2)(g)

- Allegation D. Force – PO Anne Jackson used physical force against § 87(2)(b) and § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.***

- Allegation E. Force – An officer pointed his gun at § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.***

- Allegation F. Force – An officer struck § 87(2)(b) with a nightstick in the vicinity of § 87(2)(b) in Queens.***

§ 87(2)(b) did not identify an officer from the photographic arrays shown to him over the course of the investigation. All of the officers interviewed denied pointing their firearms at § 87(2)(b) or striking

him with a nightstick or asp; the officers also denied observing any other officers doing so. PO Santiago admitted to pushing § 87(2)(b) with an asp by holding it at both ends and placing it flat across § 87(2)(b)'s chest; PO Santiago denied hitting § 87(2)(b) over the head. Furthermore, PO Santiago did not fit § 87(2)(b)'s description of the subject officer for the nightstick allegation. § 87(2)(g)

- Allegation G.** Force – PO Avidan Santiago struck § 87(2)(b) with an asp in the vicinity of § 87(2)(b) in Queens.
- Allegation H.** Force – PO Avidan Santiago used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.
- Allegation I.** Force – PO Omar Hafiz used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.
- Allegation J.** Force – PO Vincent Calderone used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.
- Allegation K.** Force – PO Daniel Lee used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.
- Allegation L.** Force – PO Jeffrey Fitterman used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.
- Allegation M.** Force – PO Alexander Wancel used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.

§ 87(2)(b), § 87(2)(g)

- Allegation N.** Force – An officer used physical force against § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.
- Allegation O.** Abuse of Authority – An officer searched § 87(2)(b) in the vicinity of § 87(2)(b) in Queens.

§ 87(2)(b) did not identify in the photo array which officer used physical force against him. PO Jackson, § 87(2)(b)'s arresting officer, also did not identify which officer physically apprehended § 87(2)(b). None of the officers admitted to apprehending § 87(2)(b). § 87(2)(g)

- Allegation P.** Discourtesy – PO Billy Choi spoke obscenely and rudely to § 87(2)(b) at the 115th Pct stationhouse.

No determination can be made regarding this allegation. PO Choi denied the allegation, but confirmed seeing § 87(2)(b) inside the stationhouse after the incident. § 87(2)(g)

- Allegation Q.** Abuse of Authority – An officer did not process § 87(2)(b)'s complaint regarding officers at the 115th Precinct stationhouse.

No determination can be made regarding this allegation. § 87(2)(b) did not identify an officer in the photographic array and the officers denied that any officer refused to process § 87(2)(b)'s request to file a CCRB complaint. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: